

25STCV23821A 25STCV23821A

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Case Number: 25STCV23821A Hearing Date: August 20, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 20, 2026

CASE NUMBER

25STCV23821A

MOTION

Demurrer to Complaint

MOVING PARTIES

Defendants Boulevard Management, Inc., Lester Knispel,
Mary Susan Barber, and Altaira Campos

OPPOSING PARTY

Plaintiff Krista

Joiner

MOTION

Plaintiff Krista

Joiner ("Plaintiff") brought the instant action against Defendants Boulevard Management, Inc., Lester Knispel, and Mary Susan Barber ("Barber," collectively, "Defendants"), alleging Defendants acted in concert with Plaintiff's ex-husband to conceal marital assets from the parties' divorce proceedings. Defendants and co-Defendant Altaira Campos ("Campos") demur to Plaintiff's complaint. Plaintiff opposes the demurrer.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Other than on the

caption page and in Paragraph 25 where Plaintiff states Campos is an individual residing in Los Angeles County, the only other references in Plaintiff's complaint to Campos is in Paragraph 14 in which Plaintiff mentions Campos and alludes to her being an aider and abettor and Paragraph 82, which relates a comment she made about emails between Plaintiff's and her ex-husband's attorneys. Thereafter, it is entirely unclear whether Plaintiff includes Campos in her reference to "The BOULEVARD DEFENDANTS." Accordingly, Campos's demurrer to the complaint is sustained with leave to amend, and the Court further considers the demurrer as it applies to Defendants.

First Cause of Action: Breach of
Fiduciary Duty

Defendants argue Plaintiff

fails to allege Defendants owed fiduciary duties to Plaintiff. In this regard, Plaintiff alleges Defendants worked as the business manager and accountant for Plaintiff and her ex-husband, and Defendants

“lied, misrepresented, and breached their duties of loyalty to” Plaintiff. (Complaint, ¶ 16, see also ¶¶ 19-20, 117.) For pleading purposes, these allegations

suffice. (*Skopp v. Weaver* (1976)

16 Cal.3d 432, 439.)

Second Cause of Action: Aiding and Abetting Breach of Fiduciary Duty

To state a cause

of action for aiding and abetting breach of fiduciary duty, Plaintiff must

allege Defendants assisted Plaintiff's ex-husband while knowing the conduct of

Plaintiff's ex-husband constituted a breach of fiduciary duty to Plaintiff, or Defendants

gave substantial assistance or encouragement to Plaintiff's ex-husband in

accomplishing the breach of fiduciary duty, and Defendants' conduct, separately

considered, also constituted a breach of duty to Plaintiff. (*Das v. Bank of America, N.A.* (2010)

186 Cal.App.4th 727, 744.) As set forth

above, Plaintiff alleges Defendants breached their own fiduciary duty to

Plaintiff and assisted Plaintiff's ex-husband in concealing marital assets from

Plaintiff. (See, e.g., Complaint, ¶¶

122-123.)

However, as

Defendants point out, Plaintiff dismissed her civil claims against her

ex-husband in *Joiner v. Joiner* (Super. Ct. L.A. County, 2022, No. 22CHCV01037

(case No. 22CHCV01037). “[A]

retraxit—modernly effected by a plaintiff's filing of a dismissal of his or her

action with prejudice—is deemed to be a judgment on the merits against that

plaintiff.” (*Alpha Mechanical, Heating & Air Conditioning, Inc. v.*

Travelers Casualty & Surety Co. of America (2005) 133 Cal.App.4th 1319,

1330, emphasis deleted.) Accordingly,

Plaintiff cannot relitigate claims based on her ex-husband's breach of

fiduciary duty. (*Armstrong v.*

Armstrong (1976) 15 Cal.3d 942, 951.)

In opposition,

Plaintiff relies upon *Tukes v. Richard* (2022) 81 Cal.App.5th 1, which is

not on point. In that case, the Court of

Appeal held a voluntary dismissal with prejudice does not collaterally estop a

party from bringing a later lawsuit with different causes of action based on

facts which were part of the dismissed claims. (*Id.* at p. 22.)

Here, Plaintiff's second

cause of action is the same claim as that which was at issue in case No. 22CHCV01037. Plaintiff seeks to hold Defendants liable for

her ex-husband's breach of fiduciary duty.

As such, Plaintiff's voluntary dismissal of case No. 22CHCV01037 bars the second cause of action.

Consequently, the

Court sustains the demurrer to the second cause of action. As the second cause of action fails as a matter of law, leave to amend would be futile, and is unwarranted. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168.)

Third Cause of Action: Negligence

Defendants'

argument Plaintiff's third cause of action for negligence is duplicative of the first cause of action for breach of fiduciary duty fails. Plaintiff is entitled to plead in the alternative. (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.)

Fourth Cause of Action: Breach of Contract

Defendants essentially

argue Plaintiff fails to allege breach of contract with specificity. Plaintiff need not do so. Plaintiff is entitled to plead breach of contract in general terms. (*Ochs v. PacifiCare of Cal.* (2004) 115 Cal.App.4th 782, 795.) Defendants may obtain further information regarding Plaintiff's claims in discovery. (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures"].)

However, as

Defendants point out, Barber is not a party to the contract at issue. Accordingly, Barber's demurrer to the fourth cause of action is sustained with leave to amend.

CONCLUSION AND ORDER

Campos's demurrer

to the complaint is sustained with leave to amend. Defendants' demurrer to the

second cause of action is sustained without leave to amend. Barber's demurrer to the fourth cause of action is sustained with leave to amend.

The demurrer is otherwise overruled.

Plaintiff is to

file an amended complaint within 20 days of notice of this order.

Defendants are

ordered to provide notice of the Court's ruling and to file proof of service of same.